

Plaintiff moves to compel responses to his first round of routine written discovery (form and special interrogatories, document requests, and requests for admission). No responses at all have been served. Defendant is represented by counsel, but no opposition or response to this motion has been filed. (This motion should probably have been calendared in Department 57.)

The motion is **granted**. Specifically:

1. Defendant Gretchen Locayo-Codus is ordered to respond to plaintiff's First Set of Form Interrogatories, served on or about September 19, 2025, with complete and sworn responses and without objections. Verified responses must be served by July 16, 2026.
2. Defendant Gretchen Locayo-Codus is ordered to respond to plaintiff's First Set of Special Interrogatories, served on or about September 19, 2025, with complete and sworn responses and without objections. Verified responses must be served by July 16, 2026.
3. Defendant Gretchen Locayo-Codus is ordered to respond to plaintiff's First Set of Requests for Production, served on or about September 19, 2025, with complete and sworn responses and without objections. Verified responses must be served by July 16, 2026. All responsive documents must be produced by July 30.
4. All matters in plaintiff's First Set of Requests for Admission, served on or about September 19, 2025, will be deemed admitted, unless defendant Locayo-Codus serves verified responses thereto, without objections, by 5:00 p.m. on June 24, 2026.

Sanctions are awarded in the amount of \$2,100, payable within 30 days by defendant or defendant's attorney to counsel for plaintiff.

10. 9:00 AM CASE NUMBER: C25-01410
CASE NAME: LUIS BARRERA VS. OSVALDO GARCIA
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: BARRERA, LUIS RIVERA
TENTATIVE RULING:

Counsel to appear in person for in camera hearing as to grounds for withdrawal. The client may appear also if desired.

11. 9:00 AM CASE NUMBER: C25-03445
CASE NAME: LAKEVIEW LOAN SERVICING, LLC VS. VANITA KHANNA
***HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING LOSS MITIGATION**
FILED BY: LAKEVIEW LOAN SERVICING, LLC
TENTATIVE RULING:

This is a judicial foreclosure action, in which the defendants have not been formally served yet. Plaintiff lender moves to stay proceedings pending loss mitigation efforts. The motion is unopposed, and it is **granted**. The Court salutes plaintiff and its counsel for this practical and reasonable approach to the litigation.

A case management conference (for status check) is set for December 4, 2026, at 8:30 a.m. All intervening dates are vacated. Plaintiff may seek to resume litigation in the meantime if need be.

12. 9:00 AM CASE NUMBER: C25-03530

CASE NAME: JOHN RUBIO VS. SUSANNE KIM

HEARING ON DEMURRER TO: COMPLAINT ADVANCED 4/1/2026 PER ORAL STIPULATION AND REQUEST.

FILED BY: KIM, SUSANNE SARECKI

TENTATIVE RULING:

Before the Court is a demurrer filed by defendants Mount Diablo Unified School District and Susanne Starecki Kim, that challenges all 14 of the causes of action alleged in the complaint of plaintiff John Rubio. Defendants argue that none of the claims asserted in the Complaint states sufficient facts to constitute causes of action.

For the reasons set forth below, the hearing on the Demurrer is continued until **Thursday, July 30, 2026, at 9:00 a.m., in Department 10**. The parties shall meet and confer **by July 9, 2026**, and Defendants shall file the required “meet and confer” declaration showing compliance with Code of Civil Procedure section 430.41(a), **by July 16, 2026**. The Court expects that by July 16, 2026, the parties will either: (1) take the demurrer off calendar due to an amended complaint being filed; (2) report impasse on all issues; or (3) report they have resolved some issues but ask for a ruling on the rest.

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged “**in person, by telephone, or by video conference**” prior to filing the demurrer. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion “failed to respond to the meet and confer request of the moving party....” (*Ibid.*) The moving party must then file a declaration with the demurrer attesting to the party’s compliance with the meet and confer requirement. (*Ibid.*) Courts have wide discretion to continue hearings to order further meet and confer efforts to take place. (*Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [“Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.”].)

The David R. Mishook Declaration does not state the parties met and conferred in the manner required by the Code of Civil Procedure. (Mishook Decl., ¶¶ 2-3.) Maribel S. Medina’s declaration confirms it. (Medina Decl., ¶ 7 [“Prior to filing the demurrer, Defendants did not attempt to meet and confer with me (or with Plaintiff) in person, by telephone, or by video conference, and Defendants did not attempt to schedule such a conference.”].) Moreover, it is apparent on the face of the demurrer that it is very much of a character that would very likely have benefited from a fruitful meet-and-confer process. That’s exactly what the statute calls for – and exactly what wasn’t done here.